ORDINANCE NO. 534

AN ORDINANCE LEVYING AN ADDITIONAL FINE OF FIFTEEN DOLLARS ($15.00) FROM EACH DEFENDANT, IN RECTOR DISTRICT COURT, WHO PLEADS GUILTY OR NOLO CONTENDERE TO, IS FOUND GUILTY OF , OR FORFEITS BOND FOR ANY MISDEMEANOR OR TRAFFIC VIOLATION OCCURRING IN THE CITY LIMITS OF RECTOR, ARKANSAS PURSUANT TO ACT 209 OF 2009; FOR SAID FUNDS TO BE USED TO DEFRAY THE COSTS OF INCARCERATING CITY PRISONERS; DECLARING AN EMERGENCY; AND FOR OTHER PURPOSES.

WHEREAS, the City of Rector incurs great costs in housing prisoners in criminal detention facilities; and

WHEREAS, the Arkansas General Assembly passed Act 209 of 2009 authorizing cities to levy an additional fifteen dollars ($15.00) fine for each defendant who pleads guilty or nolo contendere to, or is found guilty of, or forfeits bond for any misdemeanor or traffic violation in a District Court of said city and that the additional fine shall be used to defray the costs of incarcerating city prisoners and payment to other entities for incarcerating city prisoners.

NOW THEREFORE BE IT ORDAINED BY THE CITY COUNCIL OF THE CITY OF RECTOR, ARKANSAS AS FOLLOWS:

SECTION 1: That pursuant to Act 209 of 2009 an additional fine of ($15.00) will levy on each misdemeanor and traffic violation occurring in the city limits of Rector, Arkansas if the defendant pleads guilty or nolo contendere, is found guilty, or forfeits bond.

SECTION 2: That all fines collected pursuant to this ordinance shall be used exclusively to defray the costs of incarcerating city prisoners including payments to other entities for incarcerating city prisoners.

EMERGENCY CLAUSE: It is determined by the City Council of Rector, Arkansas that the city incurs great expense for the incarceration of city prisoners and that the additional revenue generated by this ordinance will help defray this burden on the City, therefore an emergency is hereby declared to exist and this ordinance is immediately necessary for the preservation of the public peace, health and safety and shall become effective immediately after its passage and publication.

CITY OF RECTOR

Ron Kemp

RON KEMP, MAYOR

ATTEST:

Lowell S. McKenney 6/29/09

LOWELL MCKINNEY, CITY CLERK/TREASURER